

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #04	CCRB Case #: 201705842	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/11/2017 8:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 1/11/2019	Precinct: 71
Date/Time CV Reported Wed, 07/12/2017 9:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/17/2017 2:45 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Mariangela Graffagnino	08863	960613	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Clifford Scanlon	06416	961253	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Mariangela Graffagnino	Discourtesy: Police Officer Mariangela Graffagnino spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On July 17, 2017, § 87(2)(b) filed this complaint with the CCRB in person.

On July 11, 2017, at approximately 8 p.m., § 87(2)(b) and a group of friends were playing dominoes in front of § 87(2)(b) in Brooklyn. PO Mariangela Graffagnino and PO Clifford Scanlon of the 71st Precinct approached the group and PO Graffagnino said to them, “Okay, this shit is coming to an end” (**Allegation A**). The officers then walked away, but § 87(2)(b) and his friends remained on the patio.

PO Graffagnino and PO Scanlon also approached another group of individuals that were on the patio and asked them to disperse, but they refused and threw bottles at the officers. The officers called for backup and the additional units that responded dispersed everyone from the patio. § 87(2)(b) and his friends left the patio once the additional officers arrived at the scene.

No arrests, summonses, or injuries resulted from this incident. There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- On August 7, 2017, a Notice of Claim request was submitted to the Comptroller’s Office, which will be added to the case file upon receipt (BR05).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) currently has another § 87(2)(b)
- PO Graffagnino has been a member of service for one year and currently has another complaint pending investigation. § 87(2)(g)

Potential Issues

- § 87(2)(b) (BR02) did not provide the names or contact information of his friends who were present when PO Graffagnino made the alleged statement, as they did not wish to participate in the complaint and had asked not to be contacted, though § 87(2)(b) was informed this would impede the investigation. § 87(2)(g)
- § 87(2)(b) (BR01) also felt he and the residents in his building were constantly being harassed by the police. § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)

Allegation A -Discourtesy: Police Officer Mariangela Graffagnino spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) said (BR01) on July 11, 2017, at approximately 8 p.m., he and a group of approximately eight friends were playing a game of dominoes on the patio in front of their building, located at § 87(2)(b) in Brooklyn. There were other individuals, whom § 87(2)(b) did not know, also on the patio chatting and hanging out. § 87(2)(b) and his friends had been playing the dominoes game for approximately two hours.

One of § 87(2)(b) friends won the game and in his excitement slammed a domino chip on the table. Within two minutes, PO Graffagnino and PO Scanlon walked onto the patio and began to observe the group. The officers stood approximately 10 feet away from § 87(2)(b) and his friends.

§ 87(2)(b) and his friends were unhappy with the officers' presence and asked why they were being observed, but the officers did not respond. § 87(2)(b) and his friends asked the officers approximately three times, but there was no response.

Some of § 87(2)(b) friends became upset at the officers' lack of response and began to use profanities against them. They told the officers to "get the fuck outta here," and that "they fucking had rights too." § 87(2)(b) did not use any profanity against the officers.

Approximately three minutes later, PO Graffagnino and PO Scanlon approached the group and PO Graffagnino said to them, "Okay, this shit is coming to an end." The officers then walked towards the other individuals that were on the patio and asked them to disperse and leave. As the officers walked away, § 87(2)(b) friends continued to use profanities against them, but the officers did not respond. The interaction with PO Graffagnino lasted approximately one minute.

The officers then approached another group of individuals that were on the patio and asked them to disperse, but they refused and threw glass bottles at the officers. § 87(2)(b) did not know if the bottles hit any of the officers or whether they sustained any injuries. The officers called for backup and within three minutes, approximately 15 to 20 additional officers arrived at the scene. The arriving officers dispersed everyone from the patio including § 87(2)(b) and his friends. § 87(2)(b) and his friends left the patio and had no further interaction with the officers. § 87(2)(b) made no allegations against the arriving officers. There was no arrest or summons as a result of this incident.

As was previously discussed, § 87(2)(b) declined to identify any other witness to the incident.

PO Graffagnino (BR03) said the § 87(2)(b) building complex, which houses the patio, is a known drug, crime and gang area. PO Graffagnino and PO Scanlon were thus at the location to provide a visible police presence. Upon arrival, PO Graffagnino observed approximately 30 individuals on the patio, but did not specifically recall if she or her partner interacted with § 87(2)(b) or any group of individuals that were playing dominoes or other game on the patio. A photograph of § 87(2)(b) was presented to PO Graffagnino, but she did not recognize him.

PO Graffagnino and PO Scanlon eventually asked all the individuals on the patio to leave after they became rowdy and blocked the exit and entrance paths of the patio. Some of the individuals refused to leave and threw glass bottles at the officers, though none of the bottles made contact. PO Graffagnino called for backup and together with the arriving officers verbally dispersed the crowd. PO Graffagnino denied using any profanities against any of the individuals she interacted with on the patio or hearing any officers do so. Once the crowd dispersed, the officers left the location. No summonses, arrests, or injuries resulted.

As such, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 4

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date